REALTORS® Association of Edmonton

RESIDENTIAL LANDLORD CUSTOMER STATUS ACKNOWLEDGMENT AND FEE AGREEMENT

THIS CUSTOMER STATUS ACKNOWLEDGMENT AND FEE AGREEMENT (THE "AGREEMENT") IS AMONG THE LANDLORD AND THE TENANT'S BROKERAGE (THE "BROKERAGE"):

AGREEMENT #:

THE LANDLORD:

NAME:

NAME:

ADDRESS:

Street address, city, province, postal code

PHONE:

EMAIL:

THE BROKERAGE:

BROKERAGE NAME:

ADDRESS:

Street address, city, province, postal code

PHONE:

EMAIL:

BROKER, ASSOCIATE BROKER, OR ASSOCIATE AUTHORIZED TO REPRESENT THE BROKERAGE:

This Agreement is entered into by the Landlord and the Brokerage on the basis of the following facts:

(a) the Landlord owns the Property;
(b) the Landlord wishes to lease the Property;
(c) the Brokerage has introduced the tenant to the Landlord (the "Tenant");
(d) the Tenant is interested in entering into a lease for the Property; and
(e) the Brokerage is a member of the REALTORS® Association of Edmonton (the "Association").

In consideration of the Brokerage introducing the Tenant to the Property, the Landlord hereby acknowledges and agrees to the following terms:

1. THE PROPERTY

The Property is located at (municipal street address)

_____

_____ having the legal description of Plan _____ Block _____ Lot/ Unit _____ Other:

(the "Property").

2. NO AGENCY REPRESENTATION

The Landlord has received and read both this Agreement and the Consumer Relationships Guide (the "CRG") published by the Board and has been given the opportunity to request further information and independent advice concerning this Agreement and the representation relationships described in the CRG, and the Landlord:

(a) has chosen to forgo any agency representation, together with its advantages, protection, and services;
(b) understands that the Brokerage does not owe the Landlord any agency obligations; and
(c) understands that the Brokerage will not provide the Landlord with any services that require the Brokerage to exercise discretion or judgment, give advice or advocate on the Landlord's behalf.

3. BROKERAGE IS AGENT OF TENANT

The Brokerage is the agent of the Tenant who is interested in the Property and, as agent, the Brokerage is obligated:

(a) to be loyal to the Tenant and always act in the best interests of the Tenant;
(b) not to provide the Landlord with advice nor to provide the Landlord with information that is not in the interests of the Tenant; and
(c) to communicate to the Tenant all information, whether or not of a confidential nature, that it receives from the Landlord, except for confidential information acquired in a prior agency relationship with the Landlord.

4. BROKERAGE'S OBLIGATIONS

The Brokerage's obligations to the Landlord are limited to:

(a) exercising reasonable care and skill in the provision of services agreed to in Section 5;
(b) not negligently or knowingly providing false or misleading information;

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(c) holding all monies received with respect to a transaction in trust in accordance with the provisions of the Real Estate Act (the "REA"); and

(d) complying with the provisions of the REA and its regulations,the rules and bylaws of the Real Estate Council of Alberta, and the rules and regulations of the Association and the Canadian Real Estate Association.

5. BROKERAGE'S SERVICES

5.1 The Brokerage will provide the Landlord with the following services:

(a) provision of standard forms necessary for the lease;

(b) presentation, in a timely manner, of all offers and counter-offers from and to the Tenant;

(c) conveying in a timely manner information between the Landlord and the Tenant; and

(d) keeping the Landlord informed regarding the progress of the transaction.

5.2 The Brokerage, at its sole discretion, may provide the Landlord with the following information:

(a) real estate statistics and comparable property information; and

(b) the names of real estate service providers, but the Brokerage will not recommend any particular service provider.

6. BROKERAGE FEE

6.1 The Landlord will pay the Brokerage $_____ (the "Fee"), plus GST if a legally enforceable lease is entered into between the Landlord and the Tenant within 90 days of the date of this Agreement and, subject to Section 6.3, whether or not the lease is completed.

6.2 The Landlord will pay the Fee on the earlier of the completion of the lease or the Landlord's refusal to complete the lease without lawful justification. A lease is completed when the lease is signed or possession is granted to the Tenant.

6.3 The Landlord will be relieved of any obligation to pay the Fee if the Tenant, without lawful justification, fails to complete the transaction.

6.4 The Landlord will pay any outstanding balance to the brokerage within 2 days of completion.

7. SECURITY FOR THE BROKERAGE'S FEES

The Landlord now encumbers all of the Landlord's interest in the land, buildings and attached goods for the benefit of the Brokerage to secure payment of all money which may be owed by the Landlord to the Brokerage under this Agreement. The Landlord agrees that the Brokerage is entitled to encumber the land in accordance with the Land Titles Act (Alberta). The Landlord now authorizes the Brokerage to file and maintain a caveat to give notice of this encumbrance.

8. DUTIES OF THE LANDLORD

The Landlord will:

(a) communicate and cooperate with the Brokerage in a timely manner; and

(b) comply with all privacy laws.

9. LANDLORD WARRANTIES

The Landlord warrants the following:

(a) the Landlord has the authority to lease the Property and enter into this Agreement; and

(b) the Property is not currently the subject of any landlord brokerage agreement.

10. USE AND DISTRIBUTION OF LANDLORD INFORMATION

10.1 The Landlord understands and consents to the collection, use and disclosure of personal information (as defined in the *Personal Information Protection Act)* by the Brokerage, and the Board for the purpose of this Agreement.

10.2 If the Landlord has any questions about the collection of personal information, the Landlord can contact the privacy officer for the Brokerage using the Brokerage's contact information on page 1.

10.3 The Landlord agrees that the Brokerage is authorized, at its discretion, to obtain information concerning the Property from any person, corporation or government or municipal agency.

10.4 The Landlord further acknowledges that the Brokerage and the Board may compile, retain and publish any statistics including historical listing service data which may be used by the Brokerage and Board members to conduct comparative market analyses.

11. INDEMNIFICATION

11.1 The Landlord will save, hold harmless and indemnify the Brokerage and any of its respective officers, directors and employees (the "Indemnified Parties") for any and all alleged or actual claims, losses, costs, damages, expenses, penalties, fines, legal fees on a solicitor client cost basis, or any other amounts for which the Indemnified Parties may incur or be found liable to pay and which are attributable or arise out of the Indemnified Parties reasonable and good faith reliance on representations made, or information provided by the Landlord.

12. ADDITIONAL TERMS

12.1 This Agreement:

(a) will constitute the entire agreement among the Landlord and Brokerage and there are no representations, warranties, collateral agreements, or conditions which affect this Agreement other than as expressed herein;

(b) is for the benefit of and will be binding upon the heirs, administrators, executors, successors and assigns of the parties; and

(c) will be governed by the laws of the Province of Alberta and the parties will submit to the jurisdiction of the Courts of

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the Province of Alberta for the resolution of any disputes that may arise out of this Agreement.

12.2 If any provision of this Agreement is found to be invalid, void, illegal, or not enforceable, such provision shall be considered separate and severable from this Agreement and the remaining provisions shall remain in force and be binding upon the parties.

12.3 The headings in this Agreement are inserted for convenience of reference only and shall not affect the construction of this Agreement.

12.4 No amendment to the terms of this Agreement shall be effective unless it is in writing and signed by the Landlord and the Brokerage.

12.5 If there is conflict or discrepancy between any provision added to this Agreement and any provision in the standard portion hereof, the added provision will supersede the standard provision to the extent of such conflict or discrepancy.

13. TERMINATION OF THIS AGREEMENT

13.1 This Agreement may be terminated by the Landlord or the Brokerage, but without prejudice to the acquired rights of either.

14. LANDLORD ACKNOWLEDGMENT

14.1 The Landlord acknowledges that:

(a) the provision of services to the Landlord and the payment of the Fee to the Brokerage do not create an agency relationship between the Landlord and the Brokerage;

(b) the Landlord has been given the opportunity to request further information and independent advice concerning this Agreement and customer status and the representation relationships described in the CRG; and

(c) this Agreement accurately sets out the terms agreed to by the Landlord and the Brokerage.

15. SIGNATURES

This Agreement may be signed by the parties in counterparts and delivered originally or electronically. The signed and delivered electronic copy is deemed to be an original. Signing may be done by wet ink, insertion by the signatory of an image of a wet ink signature, or by means of an electronic signature.

Dated at _____.m. on _____, 20 _____.

Landlord's Signature	Witness' Signature
Landlord's Printed Name	Witness' Printed Name
Landlord's Signature	Witness' Signature
Landlord's Printed Name	Witness' Printed Name
Signature of Broker, Associate Broker, or Associate authorized to sign on behalf of the Brokerage	Brokerage Representative's Printed Name

Landlord initial here to show you have received a copy of this Agreement: _____ Date: _____

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